

7.	25PR0147	ESTATE OF JAMES MILTON ROUZER
FINAL DISTRIBUTION HEARING		

Letters of Administration with Will Annexed were issued on August 25, 2025, granting Petitioner full authority under the Independent Administration of Estates Act.

A Final Inventory and Appraisal was filed on February 24, 2026. At the time the inventory and appraisal was filed, the change of ownership statement with the county recorder or assessor in each county where the decedent owned real property at the time of death, as provided in section 480 of the California Revenue and Taxation Code, was filed.

Waivers of Account were executed by some of the beneficiaries entitled to distributions under the estate. **No Waivers of Notice were executed.** Probate Code § 10954 requires a written waiver of account from each person entitled to distribution from the estate in order to waive the requirement of a final account. **There is no waiver of account on file with the court for Christian Wonder. The waiver of account filed by Rene Wonder is invalid. The purported waiver for Ms. Wonder indicates the signor as Susan Sullivan (10:19) and misidentifies the estate as the “estate of RENE WONDER” (10:16).**

Proof of Service of Notice of the hearing on the Petition was filed on June 4, 2026. The Department of Health Care Services has filed a request for special notice in this proceeding.

The proposed distribution of the estate includes the real property located at 8581 Grizzly Flat Road, Somerset, CA 95684, be distributed to Susan Sullivan. The stocks/securities will be sold, and the proceeds will be applied to estate debts. Any personal property of value will be liquidated, and the proceeds will be applied to estate debts. Any remaining bank funds will be applied to estate debts. Personal property of no value will be distributed to Christian and Rene Wonder.

Per Local Rule 10.07.12 Petitions for final distribution must include a report of the following:

3. That no federal or California estate taxes are payable or that they have been paid;
4. That income taxes and all other taxes (e.g. supplemental real property taxes or personal property taxes, if any) have been paid or otherwise provided for.

If estate taxes are payable or paid: 1) the petition shall set forth whether said taxes were prorated pursuant to Probate Code section 20100, et seq., or the provisions of the will; and 2) the petition must reflect whether or not there are non-probate assets includable in the gross estate for estate tax purposes.

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Petitioner confirms that no federal or California estate or income taxes are payable. Property taxes have been levied against the real property located at 8581 Grizzly Flat Road, Somerset, CA 95684 and supplemental property taxes will be levied. Beneficiary, Susan Sullivan, has agreed to pay, satisfy, or otherwise resolve the estate's valid debts and creditor claims and to bear the costs necessary to take the residence outright, including, but not limited to, the payment of property taxes.

The Petition requests:

1. Approving the Petition and granting final distribution of the estate as requested;
2. Approving the waiver of the final account and report;
3. Authorizing and directing distribution of the estate's real property at 8581 Grizzly Flat Road, Somerset, CA 95684 to Susan Sullivan, on the terms and conditions set forth in the Court's order, including the Transferee's payment/satisfaction of allowed creditor claims and administration expenses as appropriate;
4. Authorizing sale or liquidation of the nominal personal property (stocks and bank account funds) as requested;
5. Approving payment of compensation and reimbursement of expenses as requested;
6. Discharging Petitioner as personal representative upon completion of distribution and filing of receipts; and
7. Upon filing of the Ex Parte Petition for Discharge, Petition may be discharged and

released from all liability that may be incurred thereafter.

TENTATIVE RULING #7:

APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, JULY 6, 2026, IN DEPARTMENT NINE.

A STATUS OF ADMINISTRATION HEARING IS SET FOR 8:30 A.M. ON MONDAY, JULY 12, 2027, IN DEPARTMENT NINE. PETITIONER OR COUNSEL ARE ORDERED TO PERSONALLY APPEAR, OR FILE A STATUS UPDATE WITH THE COURT AT LEAST TWO WEEKS BEFORE THAT HEARING.

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.

7.	25PR0206	THE DARLENE ANDERSEN TRUST
MOTION TO COMPEL FURTHER DISCOVERY RESPONSES; PETITION FOR INSTRUCTIONS AND FOR REMOVAL OF TRUSTEE		

Before the Court are two separate motions: 1) Petition for Instructions and Removal of Trustee; and 2) Motions to Compel Discovery Responses.

PETITION FOR INSTRUCTIONS AND REMOVAL OF TRUSTEE

On July 31, 2025, Jeffrey Andresen (“Trustee”), as Trustee of the Darlene Andresen Trust (“Trust”), filed a Petition with the Court requesting the following relief:

1. Termination of Teresa Andresen’s (“Daughter” or “Respondent”) right to occupy the Residence;
2. Restore possession of the Residence to Trustee, including a deadline for occupants to vacate, and (if necessary) a writ of possession against Daughter and her boyfriend;
3. Daughter’s share of the trust estate be surcharged for all expenses paid by the Trust since February 21, 2025, through Daughter’s occupancy of the Residence that relate to the Residence;
4. Instruction on how to administer trust estate should Daughter’s right to occupy continue; and
5. Other and further relief as the Court deems proper.

The settlor is deceased, and gifted Daughter the conditional opportunity to occupy the Trust’s home in El Dorado Hills. The Trust terminates her right to occupy upon, “the inability of [Daughter] to pay all expenses related to the Residence.” The gift appears in the Trust’s restatement, dated January 13, 2015 (“2015 Restatement”). A copy of the 2015 Restatement, which is the operable trust document, is attached to Trustee’s Petition as Exhibit C. Upon termination, Daughter is to vacate, and the trustee is to sell the home and distribute the net sale proceeds to the remainder beneficiaries (1/3 Daughter, 1/3 to settlor’s son (the Trustee), and 1/3 to the children of a predeceased son).

Trustee contends that Daughter has not paid expenses or made necessary repairs (e.g., removal of a dead tree next to the home) and consequently, Trustee has had to use a line of credit since the settlor’s February 2025 death to make the payments (e.g., property taxes, insurance, mortgage). Trustee argues that Daughter’s inability to pay during the entire postdeath administration of this Trust—which currently spans six months and counting—sufficiently triggers the Trust’s requirement that she (and her partner who also resides there) vacate so that the home can be sold and the proceeds distributed to the several beneficiaries of the Trust.

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Trustee seeks an order confirming that Daughter's right to occupy has terminated because the Trust lacks sufficient funds to pay its required expenses, and Daughter has failed to maintain the Residence.

Trustee requests a deadline for the occupants of the Residence to vacate, and (if needed) a writ of possession. The Court has the express authority under Probate Code § 850 to restore possession of trust-owned real and personal property to the trustee. (Probate Code § 850(a)(3)(B)). Section 850 acts like an unlawful detainer action for trust-owned property, and allows the Court to issue any "appropriate relief" to restore possession. (Probate Code § 856). This relief, which may include a writ of possession, may be made against any person (beneficiaries and non-beneficiaries) who are in possession of trust-owned property. (Probate Code § 850(a)(3)(B)). There are no due process violations when compared to an unlawful detainer action because a petition under Section 850 likewise requires personal service, and it actually affords more notice to the occupants (a minimum 30 day service requirement). (Probate Code § 851).

Through surcharge, Trustee seeks reimbursement from Daughter for the expenses paid by the Trust to maintain the Residence and to bring this Petition. Trustee has paid those expenses using the line of credit (\$6,128.63 through July 28, 2025). Trustee argues that these expenses, and any future expenses relating to the Residence that are incurred during Daughter's occupancy, should be charged to Daughter's share of the Trust. The Trust grants Trustee the express authority to hire attorneys and pay them reasonable compensation. (2015 Restatement, Article VII(K)). The Trust also expressly grants Trustee the power to commence litigation related to the Trust. (2015 Restatement, Article VII (R)). Here, Trustee hired an estate litigation attorney and has paid that attorney to attempt resolution and prosecute this petition. Trustee argues this litigation expense should be charged against Daughter's share of the Trust.

At the hearing of September 29, 2025, the Court continued the matter to allow an opportunity for Objections to the Petition to be filed by November 3, 2025.

On October 30, 2025, Respondent/Daughter filed an ex parte application requesting that the Court appoint her an attorney, which was denied. On November 6, 2025, Respondent/Daughter filed an ex parte application requesting that the Court order a copy of the Will and Trust be provided to her, which was denied. The Trust document and subsequent amendments are attached to the Trustee's Petition, filed on July 31, 2025.

On November 21, 2025, Respondent/Daughter filed an Objection to the Trustee's July 31, 2025, Petition, as well as a Petition for removal of the Trustee. There is no service list attached to the proof of service on file with the Court for either the Objection or the Respondent/Daughter's Petition. In addition to Trustee and Respondent/Daughter, there are two additional beneficiaries of the Trust who are entitled to notice.

On November 24, 2025, the Court ordered property tax, insurance, and utilities related to the home be handled by Respondent/Daughter. The hearing was continued to December 29, 2025.

On December 23, 2025, the Trustee filed a response to the Petition and a hearing was held on December 29, 2025, at which the parties requested a continuance.

At the hearing on March 3, 2026, the Court confirmed prior court orders and directed Respondent/Daughter to pay items previously ordered. The hearing was continued to June 29, 2026, which was thereafter continued to July 6 2026.

On May 28, 2026, Respondent/Daughter filed First Supplement to Petition for Instructions and for Removal of Trustee, which requests the following:

1. Instructions for Trustee to administer the Trust according to the terms of the California Probate Code, including preparation and submission to beneficiaries of a proper account, inventory, appraisal, and proposed distribution of the Trust and its assets with proper notice and approval;
2. Instructions for Trustee to prepare a summary and breakdown of a) what the proceeds of the home loan that he obtained have been used for; and b) what property-related payments he as Trustee made;
3. Removal of Trustee as Successor Trustee and surcharge of Trustee for his acts as complained of herein; and
4. Set an evidentiary hearing as to the issue of the home equity loan taken out by Trustee.

MOTIONS TO COMPEL DISCOVERY RESPONSES

On November 24, 2025, Trustee served via mail Trustee's Form Interrogatories (Set One), Special Interrogatories (Set One), Requests for Admission (Set One), and Request for Production of Documents to Teresa Andresen ("Teresa" or "Responding Party"). The deadline to provide responses was December 29, 2025. No response was received by this date, nor was an extension requested. On January 12, 2026, Responding Party's attorney agreed to provide a response without objections. Unverified responses to the Form Interrogatories, Requests for Admission, and Request for Production of Documents were received on February 3, 2026. Unverified responses to the Special Interrogatories were produced on February 23, 2026. Verification of the responses were provided on March 3, 2026.

On March 5, 2026, Responding Party filed a Notice of Motion and Motion for Order of Relief from Waivers of Objections; Memorandum of Points and Authorities in Support Thereof; Declaration of Nicholas D. Yonano, Esq. in Support Thereof. Counsel for Responding Party seeks relief on the basis of mistake, inadvertence, or excusable neglect, and that Responding Party has since submitted code compliant responses. Responding Party's counsel asserts that the deadline

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was missed as the deadline was “during the holidays” and he was focused on the merits of the action.”

On April 7, 2026, Trustee’s Opposition to Teresa Andersen’s Motion for Relief from Waiver of Objections and the Declaration of Jarom B. Phipps in Support of Trustee’s Opposition to Teresa Andersen’s Motion for Relief from Waiver of Objections were filed by Trustee.

On April 8, 2026, the following motions were filed by Trustee:

1. Trustee’s Notice of Motion and Motion to Compel Further Discovery Responses from Teresa Andersen to Trustee’s First Set of Form Interrogatories and Request for Sanctions;
2. Separate Statement in Support of Trustee’s Motion to Compel Further Discovery Responses from Teresa Andersen to Trustee’s First Set of Form Interrogatories and Request for Sanctions;
3. Memorandum of Points and Authorities in Support of Trustee’s Motion to Compel Further Discovery Responses from Teresa Andersen to Trustee’s First Set of Form Interrogatories and Request for Sanctions;
4. Declaration of Jarom B. Phipps in Support of Trustee’s Motions;
5. Trustee’s Notice of Motion and Motion to Compel Further Discovery Responses from Teresa Andersen to Trustee’s First Set of Request for Production of Documents and Request for Sanctions;
6. Separate Statement in Support of Trustee’s Motion to Compel Further Discovery Responses from Teresa Andersen to Trustee’s First Set of Request for Production of Documents and Request for Sanctions;
7. Memorandum of Points and Authorities in Support of Trustee’s Motion to Compel Further Discovery Responses from Teresa Andersen to Trustee’s First Set of Request for Production of Documents and Request for Sanctions;
8. Declaration of Jarom B. Phipps in Support of Trustee’s Motions;
9. Trustee’s Notice of Motion and Motion to Compel Further Discovery Responses from Teresa Andersen to Trustee’s First Set of Specially Prepared Interrogatories and Request for Sanctions;
10. Separate Statement in Support of Trustee’s Motion to Compel Further Discovery Responses from Teresa Andersen to Trustee’s First Set of Specially Prepared Interrogatories and Request for Sanctions;
11. Memorandum of Points and Authorities in Support of Trustee’s Motion to Compel Further Discovery Responses from Teresa Andersen to Trustee’s First Set of Specially Prepared Interrogatories and Request for Sanctions; and
12. Declaration of Jarom B. Phipps in Support of Trustee’s Motions.

A hearing was set for May 18, 2026, and was continued to July 6, 2026, upon agreement of the Parties. To date, no response or additional pleadings have been received by the Court.

FORM INTERROGATORIES

Trustee asserts that Responding Party's responses to Form Interrogatories No. 2.3, 15.1, 17.1, 50.2, were incomplete and/or evasive under Code of Civil Procedure § 2023.010.

Form Rog. No. 2.3: Responding Party affirmatively responded and provided the state of her driver's license but failed to provide additional requested information. The request is ambiguous as to the term "incident." Trustee's request is denied. Responding Party is ordered to provide Trustee with her driver's license number, type, date of issuance, and restrictions within 10 days of the Court's order.

Form Rog. No. 15.1: Responding Party provides a single answer without specifying the material allegation or defense it relates to and advises further facts are contained within her verified objection. Such response is not code compliant. Code of Civil Procedure § 2030.220 requires responses to interrogatories to be complete and straightforward. Responding Party is ordered to provide a code compliant response.

Form Rog. No. 17.1: Trustee alleges Responding Party did not provide answers for her denied allegations as to Request for Admission Nos. 10 and 23.

RFA No. 10: Responding Party's response to 17.1 includes several general factual statements wherein the answers to multiple demands are lumped into a single answer. It is unclear from a review of the answers which facts relate to RFA No. 10. It is possible Responding Party's response at 10:28 and 11:1-6 relates to RFA No. 10; however, it is ambiguous as to the context of the answer. Code of Civil Procedure § 2030.220 requires responses to interrogatories to be complete and straightforward. Such ambiguity is not code compliant. Responding Party is ordered to provide a code compliant response.

RFA No. 23: Responding Party fails to provide a response. Responding Party is ordered to provide a code compliant response.

Form Rog. 50.2: Although Responding Party asserts there was no "agreement" alleged in the pleadings, she does provide a response that she did not breach any agreement. Trustee's request is denied.

REQUEST FOR PRODUCTION OF DOCUMENTS

As to the Requests for Production of Documents ("RFP"), Trustee argues that the following documents were not produced and no privilege log was provided by Responding Party.

RFP No. 1: Responding Party responded that the responsive documents or a privilege log would be produced but failed to provide any documents in violation of the statutory requirements. Responding Party is ordered to produce the responsive documents or privilege log.

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RFP No. 2: Responding Party responded that the responsive documents or a privilege log would be produced but failed to provide any documents in violation of the statutory requirements. Responding Party is ordered to produce the responsive documents or privilege log.

RFP No. 3: Responding Party responded that the responsive documents would be produced which do not invade Responding Party's right to privacy and which are relevant to the action or a privilege log would be produced but failed to provide any documents in violation of the statutory requirements. The Court finds Responding Party waived her ability to include objections by failing to meet the deadline to provide responses pursuant to Code of Civil Procedure § 2031.300. The Court further finds Trustee's interest in the requested documents outweighs Responding Party's privacy interests as they directly relate to the Trust's terms. Responding Party is ordered to produce the responsive documents or privilege log.

RFP No. 5: Responding Party responded that the responsive documents or a privilege log would be produced but failed to provide any documents in violation of the statutory requirements. Responding Party is ordered to produce the responsive documents or privilege log.

RFP No. 6: Responding Party responded that the responsive documents or a privilege log would be produced but failed to provide any documents in violation of the statutory requirements. Responding Party is ordered to produce the responsive documents or privilege log.

RFP No. 7: Responding Party responded that the responsive documents or a privilege log would be produced but failed to provide any documents in violation of the statutory requirements. Responding Party is ordered to produce the responsive documents or privilege log.

RFP No. 8: Responding Party responded that the responsive documents or a privilege log would be produced but failed to provide any documents in violation of the statutory requirements. Responding Party is ordered to produce the responsive documents or privilege log.

RFP No. 12: Responding Party responded that the responsive documents would be produced which do not invade Responding Party's right to privacy and which are relevant to the action or a privilege log would be produced but failed to provide any documents in violation of the statutory requirements. The Court finds Responding Party waived her ability to include objections by failing to meet the deadline to provide responses pursuant to Code of Civil Procedure § 2031.300; however, that waiver does not automatically overcome Responding Party's constitutional right to privacy. Medical records are among the categories of information afforded the highest degree of privacy protection. Although Responding Party has made assertions related to her disability and health issues, the Court is unpersuaded that Trustee's interest in Responding Party's medical records outweighs Responding Party's right to privacy. The request is not narrowly tailored and likely contains information not relevant to this matter. Trustee's request is denied.

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SPECIALLY PREPARED INTERROGATORIES

Trustee asserts the following answers were not code compliant as they were either incomplete or evasive or completely unresponsive as only objections were provided. As Responding Party failed to provide timely responses, Trustee asserts she waived her right to object pursuant to Code of Civil Procedure § 2030.290.

Special Rog. No. 3: Responding Party's answer is incomplete and evasive, as she has not provided all dates responsive to the question. Responding Party is ordered to provide a code compliant response.

Special Rog. No. 8: Responding Party only provides objections. The Court agrees that Responding Party waived her ability to include objections pursuant to Code of Civil Procedure § 2030.290. Responding Party is ordered to provide a code compliant response.

Special Rog. No. 9: Responding Party only provides objections. The Court agrees that Responding Party waived her ability to include objections pursuant to Code of Civil Procedure § 2030.290. Responding Party is ordered to provide a code compliant response.

Special Rog. No. 10: Responding Party only provides objections. The Court agrees that Responding Party waived her ability to include objections pursuant to Code of Civil Procedure § 2030.290. Responding Party is ordered to provide a code compliant response.

Special Rog. No. 11: Responding Party only provides objections. The Court agrees that Responding Party waived her ability to include objections pursuant to Code of Civil Procedure § 2030.290. Responding Party is ordered to provide a code compliant response.

Special Rog. No. 12: Responding Party only provides objections. The Court agrees that Responding Party waived her ability to include objections pursuant to Code of Civil Procedure § 2030.290. Responding Party is ordered to provide a code compliant response.

Special Rog. No. 13: Responding Party only provides objections. The Court agrees that Responding Party waived her ability to include objections pursuant to Code of Civil Procedure § 2030.290. Responding Party is ordered to provide a code compliant response.

SANCTIONS

Trustee seeks \$14,930 in sanctions for bringing forth the related discovery motions. Code of Civil Procedure §§ 2031.310 and 2030.300 provide: "The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response...unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

Code of Civil Procedure § 2023.010 defines “misuse of the discovery process” to include “making, without substantial justification, an unmeritorious objection to discovery”, “making an evasive response to discovery”, “failing to respond or to submit to an authorized method of discovery” and “opposing, unsuccessfully and without substantial justification, a motion to compel . . . discovery.”

Code of Civil Procedure § 2023.030 authorizes the Court to impose a monetary sanction against parties engaged in misuse of the discovery process, to pay the reasonable expenses including attorney’s fees, incurred by anyone as a result of that conduct.

Trustee’s attorney, Mr. Jarom B. Phipps, provided a declaration signed under penalty of perjury that provides the billing rates for himself and his associate attorney, Ms. Courtney Black, as well as a breakdown of the number of hours worked, and the tasks performed. Mr. Phipps’ estimation includes anticipated work for time spent reviewing opposing motions, drafting reply briefs, and attending the hearing.

The Court finds that evasive and non-responsive answers to Trustee’s discovery requests comes within the definition of “misuse of the discovery process” and awards attorneys’ fees and costs to Trustee according to proof of the costs of bringing these Motions to Compel Further Responses.

TENTATIVE RULING #8:

PETITION FOR INSTRUCTIONS AND REMOVAL OF TRUSTEE

RESPONDENT/DAUGHTER IS ORDERED TO TIMELY PAY ALL PROPERTY-RELATED EXPENSES FOR THE RESIDENCE, INCLUDING MORTGAGE, PROPERTY TAX, UTILITIES, INSURANCE, MAINTENANCE, AND NECESSARY REPAIRS. IF ANY BALANCES ARE OUTSTANDING, RESPONDENT/DAUGHTER IS ORDERED TO PAY THE BALANCES IN FULL WITHIN 10 DAYS OF THE COURT’S ORDER AND MAINTAIN CURRENT PAYMENTS MONTHLY. IF RESPONDENT/DAUGHTER FAILS TO TIMELY PAY ALL PROPERTY-RELATED EXPENSES MONTHLY AND/OR PAY OFF ANY OUTSTANDING BALANCES WITHIN 10 DAYS, THE COURT IS INCLINED TO ORDER RESPONDENT/DAUGHTER TO VACATE THE PROPERTY. RESPONDENT/DAUGHTER SHALL NOT BE RESPONSIBLE FOR PAYMENTS OF THE HOME EQUITY LINE OF CREDIT AT THIS TIME.

RESPONDENT/DAUGHTER’S REQUESTS ARE GRANTED AS FOR TRUSTEE TO ADMINISTER A PROPER ACCOUNTING, INVENTORY, APPRAISAL AND PROPOSED DISTRIBUTION OF THE TRUST AND FOR TRUSTEE TO PREPARE A SUMMARY AND BREAKDOWN OF A) WHAT THE PROCEEDS OF THE HOME LOAN HE OBTAINED WERE USED FOR; AND B) WHAT PROPERTY-RELATED PAYMENTS HE AS TRUSTEE MADE WITHIN 30 DAYS OF THE COURT’S ORDER.

THE HEARING IS CONTINUED TO AUGUST 17, 2026 AT 8:30 A.M. IN DEPARTMENT NINE. THE PARTIES ARE INSTRUCTED TO FILE A STATUS REPORT WITH THE COURT 10 DAYS PRIOR TO THE

HEARING INFORMING THE COURT OF THE STATUS OF RESPONDENT/DAUGHTER'S PROPERTY-RELATED EXPENSES AND THE STATUS OF THE ACCOUNTING AND BREAKDOWN OF THE HELOC.

DISCOVERY MOTIONS

TRUSTEE'S MOTION TO COMPEL FURTHER RESPONSES WITHOUT OBJECTION IS GRANTED AS TO FORM INTERROGATORIES NOS. 15.1, 17.1 (RFA 10), AND 17.1 (RFA 23); REQUESTS FOR PRODUCTION NOS. 1, 2, 3, 5, 6, 7, AND 8; SPECIAL INTERROGATORY NOS. 3, 8, 9, 10, 11, 12, AND 13. RESPONDING PARTY IS ORDERED TO PRODUCE ALL RESPONSIVE ANSWERS, DOCUMENTS OR PRIVILEGE LOG WITHIN 10 DAYS.

TRUSTEE'S MOTION TO COMPEL FURTHER RESPONSES IS DENIED AS TO FORM INTERROGATORIES NO. 2.3 AND 50.2; AND REQUEST FOR PRODUCTION NO. 12.

RESPONDING PARTY'S NOTICE OF MOTION AND MOTION FOR ORDER OF RELIEF FROM WAIVERS OF OBJECTIONS IS DENIED TO THE EXTENT IT CONFLICTS WITH THE COURT'S ORDERS. THE COURT DOES NOT FIND RESPONDING PARTY SUBSTANTIALLY COMPLIED WITH THE DISCOVERY DEMANDS NOR WAS HER FAILURE TO TIMELY RESPOND A RESULT OF MISTAKE, INADVERTENCE, OR EXCUSABLE NEGLECT.

ATTORNEYS' FEES AND COSTS ARE AWARDED TO TRUSTEE FOR THE COSTS OF BRINGING THE MOTIONS TO COMPEL FURTHER RESPONSES TO DISCOVERY, ACCORDING TO PROOF.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.

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9.	26PR0044	ESTATE OF STEVEN MICHAEL HUIZENGA
DETERMINE SUCCESSION TO REAL PROPERTY		

A Petition to Determine Succession to Primary Residence was filed on February 11, 2026. Objection of Lori Huizenga-Young to Petition to Determine Succession to Primary Residence; Request for Continuance was filed on April 3, 2026. The matter was continued to July 6, 2026.

On June 10, 2026, a Petition to Determine Validity of Will; Will Contest was filed. A hearing has been set for July 27, 2026.

TENTATIVE RULING #9:

THE HEARING IS CONTINUED TO MONDAY, JULY 27, 2026, AT 8:30 AM IN DEPARTMENT NINE.

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.

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10.	26PR0084	ESTATE OF PHYLISS CAMPBELL
LETTERS OF ADMINISTRATION		

At the hearing held on June 29, 2026, the Court continued the matter at the request of Attorney, George Cilley. Nothing new has been filed since the previous hearing,

TENTATIVE RULING #10:

APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, JULY 6, 2026, IN DEPARTMENT NINE.

A STATUS OF ADMINISTRATION HEARING IS SET FOR 8:30 A.M. ON MONDAY, JULY 12, 2027, IN DEPARTMENT NINE. PETITIONER OR COUNSEL ARE ORDERED TO PERSONALLY APPEAR, OR FILE A STATUS UPDATE WITH THE COURT AT LEAST TWO WEEKS BEFORE THAT HEARING.

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.

11.	26PR0104	IN RE: THE DECLARATION OF TRUST OF DOLBY R. MARPLE AND TAMZIA L. MARPLE DATED FEBRUARY 21, 1989
PETITION TO COMPEL ACCOUNTING, REMEDY BREACH OF TRUSTEE; COMPEL DISTRIBUTIONS; REDUCE TRUSTEE COMPENSATION; AND AWARD PAYMENT OF PETITIONER'S ATTORNEY'S FEES		

This matter is before the court for the hearing of the petition filed April 13, 2026, which seeks an order: (1) compelling the Trustee, Richard Marple ("Trustee"), to provide a complete accounting from January 24, 2024 to present within 30 days of the Court's order; (2) compelling the Trustee to provide all supporting documents relied on by his accounting; (3) surcharging the Trustee for damage he caused against the Trust in amount to be proven at trial; (4) compelling the Trustee to distribute the Trust assets, including the tangible personal property within 60 days of the Court's Order; (5) award Petitioner reasonable attorney's fees and costs in an amount not less than \$5,000; (6) denying any trustee fee to the Trustee; and (7) any other and further orders the Court considers just and proper.

Notice of Hearing – Decedent's Estate or Trust was filed April 16, 2026. A hearing was set for June 8, 2026, which was continued to July 6, 2026. To date, no objections or additional pleadings have been received by the Court.

TENTATIVE RULING #11:

ABSENT OBJECTION THE PETITION IS GRANTED AS FOLLOWS:

- (1) PETITIONER'S REQUEST TO COMPEL TRUSTEE TO PROVIDE A COMPLETE ACCOUNTING FROM JANUARY 24, 2024, TO PRESENT WITHIN 30 DAYS OF THE COURT'S ORDER IS GRANTED;**
- (2) PETITIONER'S REQUEST TO COMPEL TRUSTEE TO PROVIDE ALL SUPPORTING DOCUMENTS RELIED ON BY HIS ACCOUNTING IS GRANTED;**
- (3) THE COURT RESERVES JURISDICTION TO SURCHARGE TRUSTEE FOR DAMAGE HE CAUSED AGAINST THE TRUST IN AN AMOUNT TO BE PROVEN AT TRIAL;**
- (4) PETITIONER'S REQUEST TO COMPEL TRUSTEE TO DISTRIBUTE THE TRUST ASSETS, INCLUDING THE TANGIBLE PERSONAL PROPERTY WITHIN 60 DAYS OF THE COURT'S ORDER IS GRANTED;**
- (5) THE COURT RESERVES JURISDICTION TO AWARD PETITIONER REASONABLE ATTORNEY'S FEES IN AN AMOUNT TO BE DETERMINED UPON SUBSTANTIAL EVIDENCE; AND**
- (6) PETITIONER'S REQUEST TO DENY ANY TRUSTEE FEE TO THE TRUSTEE IS GRANTED.**

ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE

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COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.

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12.	26PR0114	MATTER OF SAMANTHA A. HERNANDEZ SETTLEMENT TRUST
TRANSFER IN FROM LOS ANGELES COUNTY		

On April 13, 2026, the Los Angeles County Superior Court transferred the matter to the El Dorado County Superior Court. This court is in receipt of the certified copy of the case file from Los Angeles County.

TENTATIVE RULING #12:

APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, JULY 6, 2026, IN DEPARTMENT NINE.

A STATUS OF ADMINISTRATION HEARING IS SET FOR 8:30 A.M. ON MONDAY, JULY 12, 2027, IN DEPARTMENT NINE. PETITIONER OR COUNSEL ARE ORDERED TO PERSONALLY APPEAR, OR FILE A STATUS UPDATE WITH THE COURT AT LEAST TWO WEEKS BEFORE THAT HEARING.

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.

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13.	26PR0115	MATTER OF ROMAN M. HERNANDEZ SETTLEMENT TRUST
TRANSFER IN FROM LOS ANGELES		

On April 13, 2026, the Los Angeles County Superior Court transferred the matter to the El Dorado County Superior Court. This court is in receipt of the certified copy of the case file from Los Angeles County.

TENTATIVE RULING #13:

APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, JULY 6, 2026, IN DEPARTMENT NINE.

A STATUS OF ADMINISTRATION HEARING IS SET FOR 8:30 A.M. ON MONDAY, JULY 12, 2027, IN DEPARTMENT NINE. PETITIONER OR COUNSEL ARE ORDERED TO PERSONALLY APPEAR, OR FILE A STATUS UPDATE WITH THE COURT AT LEAST TWO WEEKS BEFORE THAT HEARING.

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.

14.	26PR0144	IN THE MATTER OF THE SURVIVOR'S TRUST UNDER THE JAMES LESLIE OLICH AND NANCY TRAVER OLICH REVOCABLE TRUST DATED SEPTEMBER 2, 2015 AS AMENDED, AS RESTATED IN FULL ON SEPTEMBER 13, 2019
PETITION FOR ORDER APPOINTING SUCCESSOR TRUSTEE AND MODIFICATION TO CHANGE THE GOVERNING LAW OF THE TRUST TO FLORIDA		

Petitioner, Melissa Riddley ("Petitioner" or "Melissa"), presents this Petition for Order Appointing Successor Trustee and Modification to Change the Governing Law of the Trust to Florida.

The James Leslie Olich and Nancy Traver Olich Revocable Trust (the "Trust") was executed by James Leslie Olich ("James") and Nancy Traver Olich ("Nancy") on September 2, 2015. James has two adult children from a prior marriage: Paul Anthony Olich ("Paul") and Melissa Ridley ("Melissa"). Nancy has three children from a prior marriage: Mitchell Clark Trale ("Mitchell"), Adam Bon Durant Traver ("Adam"), and Ross Davidson Traver ("Ross").

James and Nancy executed an amendment and restatement to the Trust (the "Restated Trust") on September 13, 2019. Nancy died on November 6, 2021.

James executed an amendment to the Restated Trust on July 15, 2024 (the "2024 Amendment"). The 2024 Amendment changed the distributive provision of the Survivor's Trust to be distributed in equal shares to Melissa and Paul. James died on July 20, 2025, in the State of Florida, County of Martin.

Petition for Order Appointing Successor Trustee

Upon James' death, the Restated Trust became irrevocable pursuant to its terms. Section 7.4 of the Restated Trust identifies Premier Trust, Inc., a Nevada Chartered Trust ("Premier Trust") as the successor trustee and provided if Premier Trust is unwilling or unable to serve as trustee, a new trustee or cotrustees shall be appointed by the court. On September 30, 2025, Premier Trust declined to serve as successor trustee.

The Court has the discretion to appoint a trustee to fill a vacancy pursuant to Probate Code § 15660. In selecting a trustee, the court shall give consideration to any nomination by the beneficiaries who are 14 years of age or older. Petitioner has requested she be appointed as trustee and a nomination has been supplied by Paul. Petitioner's request to be appointed as trustee is granted.

Petition for Modification to Change the Governing Law of the Trust to Florida

Section 8.12 of the Restated Trust provides that California law shall apply. The Court may modify the administrative or dispositive provisions of the trust if, owing to circumstances not known to the settlor and not anticipated by the settlor, the continuation of the trust under its

terms would defeat or substantially impair the accomplishment of the purposes of the trust. Probate Code § 15409(a).

Petitioner seeks modification to change the governing law to Florida law pursuant to Probate Code § 15409 as the death of Decedent in Florida, both beneficiaries, assets, and probate administration will be initiated there, constitutes circumstances the settlors did not anticipate when the Trust was created and last amended. Petitioner further asserts administering the Survivor's Trust under California Law substantially impairs its primary purpose of maximizing the assets available for the beneficiaries by subjecting the trust estate to avoidable California income taxes.

Petitioner has not provided any evidence explaining why these circumstances could not reasonably have been anticipated. Additionally, Petitioner has not provided evidence supporting the assertion that the Trust will be subject to California taxation which would hinder the Trust's primary purpose of maximizing assets and how a change of law would further this purpose. Without such evidence, Petitioner's request is denied.

TENTATIVE RULING #14:

PETITION FOR ORDER APPOINTING SUCCESSOR TRUSTEE

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

PETITION FOR MODIFICATION TO CHANGE THE GOVERNING LAW OF THE TRUST TO FLORIDA

PETITIONER'S REQUEST IS DENIED.

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

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LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES

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ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.